

Court No. - 40

Case :- WRIT - C No. - 20698 of 2023

Petitioner :- M/S Shyam Enterprises Konara

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Atmaram Nadiwal, Dinesh Kumar Yadav

Counsel for Respondent :- C.S.C., Rishu Mishra

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Gajendra Kumar, J.

1. Heard learned counsel for the petitioner; learned Standing Counsel and Mrs. Rishu Mishra, learned counsel for Electricity Department.
2. Present writ petition has been preferred for a direction to respondent nos.2 and 3 to restore the electricity connection of the petitioner's firm and for a further direction to respondent nos.2 and 3 to correct the electricity bill of the petitioner firm in accordance with law .
3. At the very outset, learned counsel for the Electricity Department has raised preliminary objection regarding the maintainability of the writ petition on the ground that for similar cause of action the petitioner has already preferred application before the Consumer Dispute Redressal Forum and same is pending consideration and, as such, for the same cause of action, present writ petition is liable to be dismissed. Moreover, for the dispute of bill, exhaustive procedure is provided under Clause 6.5 of the Electricity Supply Code, 2005 (in short "the Code"). In case the petitioner approaches to the authority concerned under Clause 6.5 of the Code for rectification of the bill, definitely the authority will proceed strictly in accordance with law.
4. Confronted with this, learned counsel for the petitioner states that leave may be accorded to the petitioner to withdraw the proceeding before the Consumer Dispute Redressal Forum and to move appropriate application as per Clause 6.5 of the Code.
5. In the facts and circumstances of the case, we find substance in the objection raised by learned counsel for the Electricity Department and as such we are not inclined to interfere in the matter. However, it is always open to the petitioner to avail the remedy as available in law.
6. The writ petition stands **disposed of** accordingly.

Order Date :- 23.6.2023

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